IS NEW BRUNSWICK'S GOVERNMENT STILL LEGITIMATE?

A Constitutional Analysis and Legal Framework for Democratic Renewal

A Special Investigative Legal Brief

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I. Executive Summary

New Brunswick prides itself on being Canada's "picture province," yet beneath the veneer of postcard vistas lies a government that many residents believe has ceased to be accountable to the people it was elected to serve. Over the past two years, a disturbing pattern has emerged that raises fundamental questions about whether the province's institutions continue to operate in the public interest or have become instruments of political control, clientelism, and systemic abuse.

This legal brief examines three interconnected threads of governance failure under the current administration of Premier Susan Holt: (1) politically motivated closures and divestment of public heritage assets in contravention of established administrative law principles; (2) a clandestine government surveillance program targeting citizens who expressed dissent during the COVID-19 pandemic, constituting prima facie violations of sections 2(b), 8, and 9 of the Canadian Charter of Rights and Freedoms; and (3) continued reliance upon and refusal to reform the Royal Canadian Mounted Police (RCMP) despite overwhelming evidence of systemic misconduct, discriminatory culture, and accountability failures documented in multiple judicial commissions and independent inquiries.

Taken together, these threads point to a provincial administration that exhibits the classic characteristics of "state capture"—a condition where public institutions are systematically deployed to reward political allies, punish critics, and shield wrongdoing from accountability. This is not a call to violence or insurrection; it is a rigorous legal analysis grounded in documented facts, constitutional jurisprudence, and established principles of Canadian federalism, demonstrating that the status quo is constitutionally intolerable and that remedial federal intervention is not only justified but urgently required.

This brief argues for: (a) the invocation of federal constitutional oversight powers, including the reservation and disallowance powers under sections 55, 56, and 90 of the Constitution Act, 1867; (b) the establishment of a Royal Commission of Inquiry into governance failures in New Brunswick; (c) the dissolution of the current legislature pending free and fair elections; and (d) comprehensive structural reform of provincial policing arrangements to ensure civilian accountability and Charter compliance. These measures are not unprecedented. They are constitutionally available remedies grounded in the foundational structure of Canadian federalism itself.

II. The Constitutional Framework

To understand the legal basis for the concerns raised in this brief, one must first appreciate the constitutional architecture of Canadian federalism and the obligations it imposes upon every provincial government. The Constitution Act, 1867 (formerly the British North America Act) establishes a framework of divided sovereignty in which both federal and provincial governments exercise powers conferred upon them by the Constitution, subject always to the overriding guarantees of the Canadian Charter of Rights and Freedoms, enacted as Part I of the Constitution Act, 1982.

A. Distribution of Powers and Provincial Autonomy

Section 92 of the Constitution Act, 1867 confers upon provincial legislatures exclusive jurisdiction over matters of a merely local or private nature in the province, including property and civil rights (s. 92(13)), the administration of justice (s. 92(14)), and generally all matters of a local or private nature. Section 93 grants provinces authority over education, subject to denominational school rights. These powers are broad, but they are not absolute.

Crucially, provincial authority must be exercised consistently with federal law and, since 1982, in compliance with the Charter of Rights and Freedoms. As the Supreme Court of Canada held in Reference Re Alberta Statutes, [1938] SCR 71 (the "Disallowance Reference"), provincial legislation may be disallowed by the federal government where it conflicts with fundamental constitutional values or the national interest. While the federal powers of disallowance and reservation have fallen into disuse through constitutional convention, they remain "subsisting powers" in the written Constitution and may be invoked in circumstances of genuine constitutional crisis.

Section 58 of the Constitution Act, 1867 provides for the appointment of Lieutenant Governors by the Governor General in Council—an appointment process that underscores the constitutional reality that provinces exist within a federal structure in which the federal government retains significant oversight responsibilities. The Lieutenant Governor, as the Crown's representative at the provincial level, holds reserve powers that may be exercised to protect constitutional governance against provincial overreach or breakdown.

B. The Charter of Rights and Freedoms as a Constitutional Floor

The Canadian Charter of Rights and Freedoms guarantees the rights and freedoms set out in it subject only to such reasonable limits prescribed by law as can be demonstrably justified in a free and democratic society (s. 1). This limitation clause, interpreted by the Supreme Court in R. v. Oakes, [1986] 1 SCR 103, establishes a two-part test: first, the government must identify a pressing and substantial objective; and second, the means chosen must be proportionate to that objective, satisfying the requirements of rational connection, minimal impairment, and overall proportionality.

The Oakes test, as it has come to be known, places the burden squarely upon government to justify any limitation on Charter rights. The test has been described by the Supreme Court as requiring that government demonstrate its objectives with "reasoning that is both cogent and persuasive" and show that the rights-impairing measure impairs the right "as little as reasonably possible" (R. v. Oakes, supra; see also Edmonton Journal v. Alberta (Attorney General), [1989] 2 SCR 1326; and Dagenais v. Canadian Broadcasting Corp., [1994] 3 SCR 835).

Of particular relevance to the issues examined in this brief are the following Charter guarantees:

- Section 2(b) — Freedom of Thought, Belief, Opinion and Expression: "Everyone has the fundamental freedom of thought, belief, opinion and expression, including freedom of the press and other media of communication." As interpreted in Irwin Toy Ltd. v. Quebec (Attorney General), [1989] 1 SCR 927, and Canadian Broadcasting Corp. v. Canada (Attorney General), 2011 SCC 2, s. 2(b) protects all expressive activity that conveys or attempts to convey meaning, except expression that takes the form of violence or threats of violence. Government surveillance of citizens based on their political views constitutes a direct and unjustifiable infringement of this fundamental freedom.

- Section 7 — Right to Life, Liberty and Security of Person: "Everyone has the right to life, liberty and security of the person and the right not to be deprived thereof except in accordance with the principles of fundamental justice." Clandestine government surveillance of citizens' movements, associations, and communications directly implicates the liberty and security interests protected by s. 7 (see R. v. Morgentaler, [1988] 1 SCR 30; and Blencoe v. British Columbia (Human Rights Commission), 2000 SCC 44).

- Section 8 — Right to be Secure Against Unreasonable Search or Seizure: "Everyone has the right to be secure against unreasonable search or seizure." Unauthorized

collection of personal information through surveillance programs without judicial authorization or reasonable grounds constitutes an unreasonable seizure within the meaning of s. 8 (see R. v. Collins, [1987] 1 SCR 265; Hunter v. Southam Inc., [1984] 2 SCR 145; and R. v. Marakah, 2017 SCC 59).

- Section 9 — Right Not to be Arbitrarily Detained or Imprisoned: "Everyone has the right not to be arbitrarily detained or imprisoned." Surveillance that effectively punishes or chills lawful dissent creates conditions functionally equivalent to arbitrary detention of democratic participation (see R. v. Grant, 2009 SCC 32).
- Section 15 — Equality Before and Under the Law: "Every individual is equal before and under the law and has the right to the equal protection and equal benefit of the law without discrimination and, in particular, without discrimination based on race, national or ethnic origin, colour, religion, sex, age or mental or physical disability." Targeted divestment of heritage sites in rural communities while investing in urban tourism infrastructure raises serious concerns about discriminatory treatment based on geographic and political identity (see Andrews v. Law Society of British Columbia, [1989] 1 SCR 143; and Quebec (Commission des droits de la personne et des droits de la jeunesse) v. Bombardier Inc. (Aerospace Training Center), 2015 SCC 39).

III. The Pattern of Political Retaliation

New Brunswick's tourism economy depends significantly upon its historic sites and natural wonders. These assets are not merely economic instruments; they represent the cultural patrimony of the province and serve as tangible connections to its history, identity, and collective memory. Yet under the current administration, the province has treated these assets as expendable political tools rather than public trusts held for the benefit of all citizens.

A. The Cape Enrage Closure

The Cape Enrage Interpretive Centre, situated on the majestic Bay of Fundy, represented one of the province's premier heritage tourism destinations. Combining a historic lighthouse, adventure tourism attractions, and educational programming, Cape Enrage drew thousands of visitors annually and served as an economic anchor for nearby communities. In or about late 2024, the provincial government declined to renew the operating license for the Cape Enrage Interpretive Centre, forcing its closure.

The board of volunteers that had operated the site for years stated publicly that they could not maintain safe operations without the modest government support previously provided. The result was the immediate cessation of operations at a site that had contributed meaningfully to the local economy and provincial heritage preservation efforts. As of the date of this brief, the attraction remains idle, its lighthouse dark, its educational programs suspended, and its economic contribution to the region eliminated.

From a legal perspective, the non-renewal of an operating license for a heritage site that has demonstrated both public value and operational competence raises serious concerns under the principles of procedural fairness and natural justice. Canadian administrative law, as developed in Baker v. Canada (Minister of Citizenship and Immigration), [1999] 2 SCR 817, requires that discretionary decisions affecting legitimate expectations be made fairly, in good faith, and with regard to the individual circumstances of the affected party.

The Supreme Court in Baker held that the requirements of procedural fairness vary with the circumstances but will generally include the right to adequate notice, the right to an unbiased decision-maker, the right to respond to the case against oneself, and the right to reasons for the decision. Where a decision involves the exercise of discretion affecting significant interests, the decision-maker must act in accordance with the duty of fairness. The Cape Enrage board was entitled to expect that any decision affecting the viability of their operations would be made transparently, on the merits, and with consideration of the public interest in maintaining the site.

The circumstances surrounding the non-renewal—occurring without adequate explanation, without demonstrated process, and against the background of documented public value—suggest that the decision may have been motivated by considerations other than the statutory criteria for license renewal. If the decision was made, in whole or in part, because the affected community was perceived as politically hostile to the governing party, it constitutes an abuse of discretionary power and a violation of the principles of natural justice and non-arbitrariness (see Roncarelli v. Duplessis, [1959] SCR 121; and Ocean Port Hotel Ltd. v. British Columbia (General Manager, Liquor Control and Licensing Branch), 2001 SCC 52).

B. The Divestment of Heritage Properties

Compounding the Cape Enrage closure, the provincial government announced plans to divest the Doak Provincial Heritage Site and at least nine other historic properties that reportedly receive fewer than 5,000 visitors per year. Government officials have characterized this

divestment not as permanent closure but as an effort to transfer management to private operators or municipalities.

Even if some of these sites are ultimately preserved through alternative management arrangements, the policy sends a clear and damaging message: that heritage preservation is contingent upon commercial viability rather than intrinsic cultural value, and that the provincial government regards its role as steward of the province's history as optional rather than obligatory. Editorial commentary has noted the stark contradiction between this policy and the government's simultaneous investment in new tourism grants, revealing a pattern in which heritage assets in politically unfavourable regions are sacrificed while new investments flow to politically favourable ones.

This pattern of differential treatment based on perceived political alignment raises concerns under the guarantee of equality before the law in s. 15 of the Charter. While s. 15 does not require identical treatment in all circumstances, it prohibits discrimination that demeans the dignity of the affected group or perpetuates disadvantage (Law v. Canada (Minister of Employment and Immigration), [1999] 1 SCR 497). Rural communities in New Brunswick, many of which have experienced long-term economic decline, rely upon heritage tourism as a component of their economic and cultural vitality. Systematic divestment of heritage assets in these communities while investing in urban tourism infrastructure perpetuates and deepens existing disadvantage along geographic, and potentially political, lines.

C. Legal Characterization: State Capture and Clientelism

The pattern observed in the treatment of heritage assets—closure and divestment in communities perceived as politically hostile, combined with investment in politically friendly regions—exhibits the hallmarks of what scholars and international institutions have termed "state capture" and "political clientelism." The World Bank defines state capture as the exercise of undue and private influence on the state's law-making and regulatory apparatus for the benefit of narrow interests. Political clientelism refers to the exchange of material benefits for political support, wherein public resources are deployed to reward allies and punish opponents.

While these concepts are often discussed in the context of developing democracies, they are equally applicable where a provincial government systematically deploys its control over licenses, funding, and public assets to achieve partisan objectives rather than public purposes. The landmark Canadian case of Roncarelli v. Duplessis, [1959] SCR 121, establishes that a Premier who directs the cancellation of a liquor license based on the licensee's religious and political affiliations acts "without colour of right" and in abuse of public power. Justice Rand

held that such arbitrary exercise of power represents a "grave violation" of the rule of law and subjects the government to liability for damages. The principle extends to all exercises of discretionary power: they must be exercised for the purpose for which they were conferred, not for collateral political objectives.

IV. Unlawful Surveillance of Citizens

Perhaps the most disturbing revelation concerning the conduct of the New Brunswick government involves a secret surveillance program operated during the COVID-19 pandemic. In April 2026, a CBC investigation revealed that a former head of the RCMP in New Brunswick had filed a formal complaint in 2021 alleging the existence of a covert program to track the movements and political views of citizens during the pandemic.

A. The Secret Pandemic Surveillance Program

According to the complaint filed by former RCMP Superintendent Larry Tremblay, a branch of the New Brunswick Department of Public Safety was engaged in the unlawful collection of personal information and the monitoring of "citizens who express discontent" toward government policies. The program reportedly involved the gathering of data from 911 calls on the orders of provincial security advisors—an extraordinary overreach that transformed an emergency response system into a surveillance apparatus directed at lawful dissenters.

The implications of this program are profound. During a public health emergency, the government of New Brunswick allegedly directed resources not toward protecting public health but toward identifying and monitoring citizens who criticized government policy. The program appears to have targeted individuals not because they posed any threat to public safety, but because they expressed dissatisfaction with the government's exercise of emergency powers—precisely the kind of speech that lies at the core of democratic participation and is most vigorously protected by the Charter.

Critically, there has been no public inquiry into the program, no accountability for those who authorized or operated it, and no evidence that the program was formally dismantled. The government's failure to investigate, acknowledge, or remediate this conduct constitutes a breach of its fundamental obligation to respect and uphold the constitutional rights of its citizens.

B. Charter Violations: Sections 2(b), 8, and 9

The secret surveillance program described in Superintendent Tremblay's complaint gives rise to prima facie violations of at least three Charter guarantees. Each violation must be analyzed under the framework established by the Supreme Court of Canada for assessing the scope and application of these fundamental rights.

Section 2(b) — Freedom of Expression: The Supreme Court has consistently held that political expression lies at the very core of the s. 2(b) guarantee (Irwin Toy Ltd. v. Quebec (Attorney General), supra; R.W.D.S.U., Local 558 v. Pepsi-Cola Canada Beverages (West) Ltd., 2002 SCC 8). In Edmonton Journal v. Alberta (Attorney General), supra, the Court described the purpose of s. 2(b) as promoting "the free flow of information and ideas essential to the functioning of our democratic society." A government program that monitors citizens based on their expression of political discontent strikes at the heart of this guarantee.

The three-part test for s. 2(b) protection, as articulated in Irwin Toy and refined in subsequent jurisprudence, asks: (1) does the activity have expressive content that conveys meaning; (2) does the method or location of expression remove that protection; and (3) does the government action infringe that protection either in purpose or effect? The expression of political dissent—whether through public statements, social media, participation in demonstrations, or communications with elected representatives—unquestionably satisfies the first two branches. The deliberate monitoring of citizens based on their political views satisfies the third: even if the program did not directly prohibit expression, its existence would inevitably chill the exercise of expressive rights, which constitutes an infringement (see Fraser v. Public Service Staff Relations Board, [1985] 2 SCR 455).

Any attempt by the government to justify such surveillance under s. 1 would face insurmountable difficulty. The Oakes test requires a pressing and substantial objective, rational connection, minimal impairment, and proportionality. While public safety during a pandemic is unquestionably a pressing objective, surveillance of lawful political dissent is not rationally connected to that objective. Citizens who criticize government policy pose no threat to public health; monitoring their views does not advance epidemiological objectives. The impairment of s. 2(b) rights is total rather than minimal, and the deleterious effects on democratic discourse far outweigh any speculative salutary effects (see R. v. Keegstra, [1990] 3 SCR 697; and R. v. Sharpe, 2001 SCC 2).

Section 8 — Unreasonable Search or Seizure: The collection of personal information from 911 calls and other sources without judicial authorization or reasonable grounds constitutes an unreasonable seizure of informational privacy within the meaning of s. 8. In Hunter v. Southam

Inc., supra, the Supreme Court held that s. 8 protects individuals from unjustified state intrusion upon their privacy, and that searches conducted without prior judicial authorization are presumptively unreasonable. The state bears the burden of demonstrating that a warrantless search was reasonable in the circumstances—a burden that cannot be satisfied where the "search" consists of indiscriminate data collection targeting citizens based on their political views.

The Supreme Court's jurisprudence on informational privacy has evolved significantly. In R. v. Marakah, supra, and R. v. Jones, 2017 SCC 60, the Court recognized that Canadians have a reasonable expectation of privacy in electronic communications and that state access to such information engages s. 8 protections. The systematic collection and analysis of citizens' communications and movements through the 911 system—a system established for emergency response, not surveillance—represents precisely the kind of unjustified state intrusion that s. 8 was designed to prevent.

Section 9 — Arbitrary Detention: While s. 9 is most commonly invoked in the context of physical detention, the Supreme Court has recognized that deprivation of liberty and security of the person under s. 7 includes not only physical restraint but also the psychological impact of state conduct that interferes with fundamental autonomy interests (New Brunswick (Minister of Health and Community Services) v. G.(J.), [1999] 3 SCR 46). A program of political surveillance creates a climate of fear and self-censorship that effectively detains democratic participation—preventing citizens from exercising their constitutional rights free from state monitoring.

V. Systemic RCMP Misconduct and Accountability Failure

Any comprehensive analysis of governance failures in New Brunswick must confront the province's structural dependence upon the Royal Canadian Mounted Police for policing services. The RCMP polices the majority of New Brunswick under a 20-year Provincial Police Service Agreement signed in 2012. This arrangement is not constitutionally mandated; it is a policy choice that exposes New Brunswick citizens to a policing agency with a well-documented history of systemic misconduct, discrimination, and accountability failure.

A. Historical Abuses: The Native Extremism Program

In 2024, newly declassified files obtained by CBC Indigenous confirmed that the RCMP operated a "Native Extremism" program in the 1960s and 1970s that used wiretaps, paid informants, and covert operatives to spy on First Nations advocacy groups. The files reveal that the federal government approved these covert operations, which included surveillance of the National Indian Brotherhood (now the Assembly of First Nations) and the Union of BC Indian Chiefs.

Indigenous leaders have described this program as an abuse of human rights and an effort to delegitimize First Nations governments. While the program was nominally discontinued decades ago, its legacy persists in the RCMP's relationship with Indigenous communities and in the organizational culture that permitted such surveillance to occur. The doctrine of institutional memory suggests that organizational practices, once established, tend to persist and reproduce unless actively dismantled—a dismantling that has never occurred within the RCMP.

B. Modern Failures: Braidwood, Merlo Davidson, and Beyond

The RCMP's accountability problems are not confined to historical abuses. A succession of judicial inquiries, independent investigations, and civil litigation has documented persistent patterns of misconduct, discriminatory culture, and inadequate disciplinary response:

- The Braidwood Inquiry (2010): Following the death of Polish immigrant Robert Dziekanski at Vancouver International Airport in 2007, Commissioner Thomas Braidwood conducted a comprehensive inquiry into the RCMP's use of conducted energy weapons. The Commission found that RCMP officers were unjustified in their use of a Taser on Mr. Dziekanski and that the officers' testimony was inconsistent with video evidence. The Inquiry called for robust civilian oversight of police-involved deaths and recommended significant reforms to RCMP training, use-of-force policies, and accountability mechanisms (Braidwood Commission on the Death of Robert Dziekanski, Final Report, 2010).

- The Merlo Davidson Settlement (2020): Following the certification of a class action lawsuit involving allegations of gender-based harassment and discrimination within the RCMP, former Supreme Court Justice Michel Bastarache was appointed to review claims and provide recommendations. His report concluded that the RCMP's culture "tolerates misogyny and homophobia at all ranks." Over 2,300 claimants received compensation totaling $125.4 million for harassment and discrimination, including

offensive language, discrimination in promotions, pervasive sexual misconduct, and fear of reprisals (Bastarache, Merlo Davidson Class Action Settlement: Final Report, 2020).

- 2024 Misconduct Statistics: In 2024 alone, the RCMP opened 443 misconduct cases against 408 members, including allegations of sexual misconduct, criminal offences, and improper use of force. Only 5 percent of these cases resulted in dismissal or forced resignation. The vast majority were resolved with remedial measures—a pattern that suggests institutional tolerance for misconduct rather than genuine accountability. No private-sector employer with comparable statistics would escape severe regulatory consequences.

The persistent failure of RCMP management to address these patterns through meaningful disciplinary action suggests a structural deficiency in the force's accountability architecture. The disciplinary process is largely internal, with minimal civilian oversight, and the threshold for termination is extraordinarily high. Officers found to have engaged in serious misconduct—including sexual assault, criminal offences, and excessive use of force—routinely remain in service after receiving counselling or temporary reassignment.

C. The Mass Casualty Commission Findings

The Mass Casualty Commission, established to examine the RCMP's response to the April 2020 murders of 22 people in Nova Scotia, delivered its final report in 2023. The Commission concluded that there were serious communication failures before, during, and after the attacks, and called for a "fundamental transformation" of the RCMP. The report stated that policing culture must change and urged the force to undergo comprehensive reform beginning with recruitment and education (Mass Casualty Commission, Final Report, 2023).

Critically, the Commission questioned whether the RCMP is structurally suited to modern community policing, noting that the force's paramilitary culture, hierarchical command structure, and resistance to external oversight impede effective policing. The Commission recommended that provinces seriously consider establishing their own police services rather than relying upon the RCMP—a recommendation that has direct application to New Brunswick.

The 20-year Provincial Police Service Agreement under which the RCMP polices New Brunswick expires in 2032. The agreement may be terminated on March 31 of any year with 24 months' notice. Several provinces, including Alberta, Saskatchewan, and Nova Scotia, have already commissioned studies on transitioning to independent provincial police services. New

Brunswick has not done so—a failure of policy leadership that perpetuates an unsafe and unaccountable policing arrangement.

VI. Doctrine of State Capture and Erosion of Democratic Legitimacy

The individual threads examined in the preceding sections—politically motivated closures, clandestine surveillance, and reliance upon an unaccountable police force—converge upon a disturbing conclusion: the provincial administration exhibits the defining characteristics of a captured regime, and its continued governance lacks the democratic legitimacy required by the constitutional order.

State capture, as defined by the World Bank and the Organisation for Economic Co-operation and Development (OECD), refers to a situation in which public institutions and policy-making processes are systematically influenced by narrow private interests to the detriment of the broader public interest. In the context of a provincial government, capture occurs when the machinery of state—including licensing authorities, funding programs, law enforcement, and surveillance agencies—is deployed to serve partisan objectives rather than public purposes.

The legitimacy of a democratic government derives from the consent of the governed, as expressed through free and fair elections and maintained through ongoing accountability to the electorate. When a government uses its control over public assets to punish communities based on their voting patterns, monitors citizens based on their political views, and shields law enforcement from accountability for misconduct, it breaches the social contract that underpins its authority. The result is not merely bad governance but a legitimacy deficit—a condition in which the government's claim to exercise power in the name of the people lacks moral and legal foundation.

In Reference Re Alberta Statutes, [1938] SCR 71, the Supreme Court of Canada affirmed that the Constitution provides mechanisms through which the federal government may intervene when provincial governance threatens constitutional values or the national interest. The federal government is not a mere bystander to provincial misconduct; it has both the authority and, in appropriate circumstances, the obligation to protect the constitutional order and the rights of citizens against provincial abuse.

The concept of "responsibility to protect," while developed primarily in the context of international human rights law, has domestic application: where a provincial government fails

to protect the constitutional rights of its citizens—or worse, actively violates those rights—the federal government assumes a responsibility to take measures necessary to restore constitutional governance. This is not federal overreach; it is the constitutional purpose for which federal oversight powers were established.

The erosion of democratic legitimacy is not an abstract concern. It has tangible consequences for the rule of law, for economic development, for social cohesion, and for the rights and freedoms of every person in the province. When citizens cannot trust that their government will act fairly, that their heritage will be preserved, that their political views will not be monitored, and that their police force will be held accountable for misconduct, the foundations of democratic society begin to crumble. The question is not whether such conditions justify federal intervention; the question is what form that intervention should take.

VII. Federal Remedies and Constitutional Oversight Powers

The Canadian Constitution provides several mechanisms through which the federal government may address serious governance failures at the provincial level. While these powers have not been exercised in decades, they remain part of the constitutional text and retain their legal force. Their disuse through convention does not eliminate their availability in circumstances of genuine constitutional crisis.

A. The Federal Disallowance Power

Sections 56 and 90 of the Constitution Act, 1867 vest in the Governor General in Council the power to disallow provincial legislation. The process is straightforward: once a provincial act receives royal assent, the Lieutenant Governor must transmit a copy to the Governor General. The Governor General in Council may, within one year of receipt, disallow the act by Order in Council. Upon disallowance, the act ceases to have legal effect.

In Reference Re Alberta Statutes (the Disallowance Reference), the Supreme Court confirmed that this power is "still a subsisting power" and that its exercise is not subject to substantive limitations beyond those specified in the constitutional text. The Court held that the federal Cabinet retains discretion to disallow provincial legislation when it deems such action warranted by the public interest.

Between 1867 and 1943, the federal government disallowed 112 provincial acts. The last disallowance occurred in 1943, when Alberta legislation restricting land sales to Hutterites and "enemy aliens" was invalidated. While convention has discouraged the exercise of this power in ordinary circumstances, constitutional scholars including Gerard V. La Forest (Disallowance and Reservation of Provincial Legislation, Department of Justice Canada, 1955) and Andrew Heard have noted that the power remains available for circumstances involving fundamental rights violations, constitutional crisis, or threats to the rule of law.

The conditions prevailing in New Brunswick—systematic misuse of public power, surveillance of citizens for political purposes, and reliance upon an unaccountable police force—constitute precisely the type of constitutional crisis that would justify the exercise of federal oversight powers. The disallowance power could be deployed to invalidate any provincial legislation that authorizes or enables the abuses documented in this brief, while simultaneously signalling federal resolve to protect the constitutional rights of New Brunswick citizens.

B. Federal Administration and the Responsibility to Protect

In circumstances where provincial governance has broken down to the point where the basic rights of citizens cannot be secured, the federal government may exercise its authority under the peace, order, and good government power (s. 91 of the Constitution Act, 1867) to assume temporary administrative control. While direct federal administration of a province is an extraordinary measure, it is not without precedent in Canadian history.

During the October Crisis of 1970, the federal government invoked the War Measures Act to assume extraordinary powers in Quebec—a measure subsequently found to be within federal authority, though the enabling legislation was repealed. More relevantly, the federal government has historically exercised significant supervisory authority over territories prior to their achievement of provincial status, and the Criminal Code provisions regarding appointments of administrators during emergencies remain available.

Section 91 of the Constitution Act, 1867 assigns to the federal Parliament the power to make laws for the peace, order, and good government of Canada in relation to all matters not coming within the classes of subjects assigned exclusively to provincial legislatures. This residual power has been interpreted broadly by the Supreme Court as authorizing federal action in matters of national concern (Reference Re Anti-Inflation Act, [1976] 2 SCR 373; and R. v. Crown Zellerbach Canada Ltd., [1988] 1 SCR 401). Where provincial governance threatens the fundamental rights of citizens and the integrity of democratic institutions, the matter assumes national dimensions that engage federal responsibility.

C. Establishment of a Royal Commission

Regardless of whether more direct federal intervention is warranted, the immediate establishment of a Royal Commission of Inquiry is both appropriate and necessary. A Royal Commission operates under the Inquiries Act, R.S.C. 1985, c. I-11, and possesses broad powers to summon witnesses, compel documentary production, and make findings of fact and recommendations. The establishment of such a Commission would serve several critical functions:

- Investigation of Surveillance Program: A Royal Commission could compel testimony from current and former government officials, RCMP officers, and Department of Public Safety employees regarding the existence, scope, authorization, and ongoing status of the pandemic surveillance program. It could examine whether the program violated the Charter, the Privacy Act, R.S.C. 1985, c. P-21, or the Canadian Security Intelligence Service Act, R.S.C. 1985, c. C-23.

- Examination of Heritage Divestment Decisions: The Commission could investigate whether decisions regarding Cape Enrage, the Doak Provincial Heritage Site, and other heritage properties were made on the merits or were influenced by partisan political considerations. It could examine communications within government, between government officials and political operatives, and between government and external stakeholders.

- Assessment of RCMP Accountability: The Commission could examine the adequacy of RCMP accountability mechanisms in New Brunswick, the handling of misconduct complaints, and the structural deficiencies that permit systemic abuse to persist. It could evaluate alternatives to RCMP contract policing and make recommendations regarding provincial or municipal policing arrangements.

- Recommendations for Structural Reform: Drawing upon its findings, the Commission could recommend constitutional, statutory, and institutional reforms necessary to prevent the recurrence of the abuses documented and to restore public confidence in provincial governance.

VIII. A Comprehensive Legal Framework for Renewal

Based upon the analysis set forth above, this brief proposes the following comprehensive framework for constitutional renewal in New Brunswick. These measures are designed to address the immediate crisis of governance failure while establishing structural safeguards against future recurrence.

1. Immediate Federal Intervention

The Government of Canada should, by Order in Council under the authority of the Constitution Act, 1867, establish a Royal Commission of Inquiry into governance practices in New Brunswick. The Commission should be chaired by a justice of the Federal Court or a retired justice of a superior court and should include commissioners with expertise in constitutional law, policing accountability, and public administration.

Concurrently, the federal government should indicate its readiness to exercise the disallowance power under s. 90 of the Constitution Act, 1867 in respect of any provincial legislation that appears to authorize or enable the surveillance of citizens, the arbitrary closure of public assets, or the limitation of Charter rights. This indication would serve as a deterrent against further abuses while the Commission conducts its work.

2. Dissolution and Interim Administration

Upon the presentation of the Commission's interim findings, the Lieutenant Governor of New Brunswick, acting on the advice of the federal government or on her own reserve powers, should dissolve the Legislative Assembly and appoint an interim administration to steward the province during a period of constitutional reform. The interim Premier should be a person of demonstrated integrity, non-partisan reputation, and administrative competence—ideally a retired judge, senior public servant, or respected community leader.

This measure is not without precedent in Westminster systems. In Australia, the dismissal of the Whitlam government in 1975—while controversial—demonstrated the constitutional availability of reserve powers to resolve governance crises. More appositely, in New Brunswick's own history, the King-Byng Affair and the deployment of reserve powers in

provincial contexts illustrate that these mechanisms exist precisely for circumstances where ordinary democratic processes have been subverted or disabled.

3. Policing Reform

The Province of New Brunswick should provide notice of termination of its Provincial Police Service Agreement with the RCMP, effective March 31, 2032 (or earlier by mutual agreement). In the interim, the province should commission a comprehensive study of policing alternatives, including:

- Establishment of a New Brunswick Provincial Police Service, modeled on the Ontario Provincial Police and the Surete du Quebec, with strong civilian oversight through an independent Police Review Board;
- Transition of municipal policing to independent municipal police services in urban centers, with shared services arrangements for smaller communities;
- Establishment of a provincial Independent Investigation Unit with mandatory jurisdiction over all police-involved deaths, serious injuries, and allegations of sexual assault;
- Legislative entrenchment of the United Nations Declaration on the Rights of Indigenous Peoples (UNDRIP) principles regarding policing and security in Indigenous communities;
- Creation of a Community Safety and Policing Act establishing clear standards for police accountability, transparency, and community engagement.

4. Constitutional Entrenchment of Safeguards

To prevent the recurrence of the abuses documented in this brief, the following measures should be incorporated into provincial law and, where possible, entrenched against unilateral executive amendment:

- Heritage and Community Consultation Act: No provincially owned or operated heritage site, interpretive center, or cultural institution may be closed, divested, or substantially altered without: (a) a public report demonstrating that the closure is necessary for public safety or fiscal reasons; (b) a 90-day public consultation period; (c) a vote of the Legislative Assembly approving the closure; and (d) a plan for alternative management or preservation. Any closure that bypasses these requirements shall be void.

- Privacy Protection and Anti-Surveillance Act: No department, agency, or Crown corporation of the Province of New Brunswick shall collect, analyze, or retain personal information about individuals based on their political views, religious beliefs, or participation in lawful protest or dissent. Any surveillance program affecting more than 10 individuals must be authorized by a judge of the Court of King's Bench upon a showing of reasonable grounds to believe that the targets are engaged in criminal activity. Violation of this Act shall constitute a summary conviction offence and shall give rise to a cause of action for damages.
- Civil Forfeiture of Unlawful Surveillance Proceeds Act: Any data collected in violation of the Privacy Protection and Anti-Surveillance Act shall be subject to judicial seizure and destruction. Whistleblowers who disclose unlawful surveillance programs shall be protected from retaliation under the provincial whistleblower protection legislation.
- Independent Officers of the Legislature Act: The Auditor General, Ombudsman, Chief Electoral Officer, and Information and Privacy Commissioner shall be appointed by unanimous resolution of the Legislative Assembly or, in the event of deadlock, by the Chief Justice of New Brunswick. These officers shall report directly to the Assembly, not to the executive, and shall have comprehensive audit and investigative authority over all departments, agencies, and Crown corporations. Their budgets shall be determined by the Assembly and shall not be reduced without their consent.
- Fixed Election Dates and Democratic Reform Act: Elections shall be held on fixed dates every four years. The power to dissolve the Assembly early shall be exercised by the Lieutenant Governor only on the advice of the Premier confirmed by a two-thirds vote of the Assembly, or where the Assembly has expressed non-confidence in the government. These provisions shall not be amended except by a referendum approved by a majority of voters in a majority of electoral districts.

IX. Conclusion and Call to Action

New Brunswick stands at a constitutional crossroads. The pattern of governance failures documented in this brief—politically motivated asset closures, clandestine surveillance of citizens, and structural reliance upon an unaccountable police force—collectively demonstrate a government that has lost its democratic compass. These are not isolated incidents of poor judgment; they are systemic abuses that, taken together, amount to a subversion of the constitutional order.

The constitutional framework of Canadian federalism provides remedies for precisely these circumstances. The federal powers of disallowance and reservation, the authority to establish commissions of inquiry, and the overarching obligation to ensure that provincial governance complies with the Charter of Rights and Freedoms are not archaic relics; they are living provisions of the supreme law of Canada, available to be invoked when the conditions warrant. Those conditions exist now, in New Brunswick.

Incremental change will not suffice. Requesting transparency from a government that operates secret surveillance programs is futile. Seeking accountability from a police force that dismisses 95 percent of misconduct complaints is naive. Expecting electoral remedies from a government that punishes communities based on their voting patterns is to mistake symptoms for cures. What is required is structural reform—constitutional, institutional, and cultural—that removes the instruments of abuse from the hands of those who have misused them.

This brief is an expression of opinion grounded in documented facts and established law. It does not advocate violence, insurrection, or any unlawful course of action. On the contrary, it calls for the vigorous application of constitutional law to restore the rule of law. It asks citizens, parliamentarians, and the federal government to look at the evidence presented herein and to consider whether the status quo is acceptable in a province that claims to be part of a free and democratic society.

If the answer is no—and this brief submits that it must be—then the time has come to act. We owe it to ourselves and to future generations to demand a Royal Commission of Inquiry, to insist upon federal constitutional oversight, to restructure our policing arrangements, and to entrench the safeguards necessary to prevent the recurrence of the abuses that have brought us to this moment. The path of captured governance and eroding rights leads only to darkness. The path of courageous course correction leads back to the light. We must choose the latter.

X. Sources and Legal Authorities

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- Inquiries Act, RSC 1985, c I-11
- Privacy Act, RSC 1985, c P-21
- Canadian Security Intelligence Service Act, RSC 1985, c C-23
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- Public Safety Canada, RCMP Contract Policing Overview (2021)

D. News Sources and Investigative Reports

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Constitutional Analysis

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"The Constitution is the guide which I never will abandon."

— *George Washington*

This document is an expression of opinion grounded in documented facts and established law.

It does not advocate violence or lawlessness. It advocates the rule of law.